1489 [“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency”].) Even assuming the CAA and FAA neither require nor authorize the court to stay the current claims, the Court here would exercise its inherent authority to issue a stay pending the completion of binding arbitration.

Conclusion

Defendant’s motion to compel arbitration is granted. The Court orders the Parties to submit their dispute to arbitration in accordance with the Important Arbitration Disclosures section in the subject Lease Agreement. The Court orders this matter to be stayed in full, pending conclusion of the arbitration.

The court sets a Case Management Conference (CMC) for the purpose of ascertaining the status of the arbitration for Monday, December 7, 2026, in Dept. 32 at 8:30 a.m. Parties are ordered to file a joint statement on the status of the arbitration, specifically to include confirming whether or not the arbitration is still in progress, and if the arbitration is continuing indicating a preference for a continued CMC in either 6 or 9 months. The joint statement is due to be filed 10 court days prior to the CMC. Parties may appear at the CMC by Zoom.

9. 9:00 AM CASE NUMBER: C25-03095
CASE NAME: WELLS FARGO BANK, NATIONAL ASSOCIATION VS. ROSEWOOD COMMONS PROPERTY OWNER, LLC
***HEARING ON MOTION IN RE: APPOINTMENT OF RECEIVER**
FILED BY: WELLS FARGO BANK, NATIONAL ASSOCIATION
TENTATIVE RULING:

Plaintiff’s Motion for Appointment of Receiver is granted. The Court approves the nomination of David Kieffer to be the Receiver in this action. The Court will sign and file the Proposed Order.

10. 9:00 AM CASE NUMBER: C25-03386
CASE NAME: CECILY TAYLOR VS. STEVE SMITH
***HEARING ON MOTION IN RE: DISQUALIFY COUNSEL**
FILED BY: TAYLOR, CECILY
TENTATIVE RULING:

Before the Court is Plaintiff Cecily Taylor’s Motion to Disqualify Counsel.

Plaintiff’s motion is **denied** for the reasons set forth below.

<u>Factual and Procedural Background</u>

Plaintiff filed her Complaint in this matter on November 21, 2025. Plaintiff is representing herself in pro per. Defendants first appeared in this matter when they filed a Demurrer to the Complaint on January 8, 2026. Counsel of Record for Defendants is Alexander J. Gregory of the Law Offices of Alexander J. Gregory.

On January 28, 2026, Plaintiff filed the instant motion to disqualify counsel. According to the Notice, Plaintiff seeks an order “disqualifying Alexander J. Gregory, Esq., and the Law Office of Alexander J. Gregory, Tod Ratfield, Esq., and the law firm of Tod M. Ratfield, A Professional Corporation Attorney at Law (“Tod Ratfield and Associated Counsel”)….” (Notice at 2:4-10.) Plaintiff contends there are irreconcilable conflicts of interest related to alleged prior representation of Plaintiff by Mr. Ratfield and his firm.

<u>Standard</u>

“A court's authority to disqualify a lawyer in a pending proceeding derives from its inherent power to regulate the conduct of court officers, including attorneys, in furtherance of the sound administration of justice.” *City of San Diego v. Superior Court* (2018) 30 Cal.App.5th 457, 469.) “Whether an attorney should be disqualified is a matter addressed to the sound discretion of the trial court.” (*Henricksen v. Great American Savings & Loan* (1992) 11 Cal.App.4th 109, 113.)

Disqualification, however, is “a drastic remedy that should be ordered only where the violation of the privilege or other misconduct has a ‘substantial continuing effect on future judicial proceedings.’” (*Id.* at 462 quoting *Gregori v. Bank of America* (1989) 207 Cal.App.3d 291, 309.) “There must be a ‘reasonable probability’ and ‘genuine likelihood’ that opposing counsel has ‘obtained information the court believes would likely be used advantageously against an adverse party during the course of the litigation.’” (*Ibid.*)

“Motions to disqualify counsel are especially prone to tactical abuse because disqualification imposes heavy burdens on both the clients and courts: clients are deprived of their chosen counsel, litigation costs inevitably increase and delays inevitably occur. As a result, these motions must be examined ‘carefully to ensure that literalism does not deny the parties substantial justice.'" (*City of Santa Barbara v. Superior Court* (2004) 122 Cal.App.4th 17, 22 quoting *People ex rel. Dept. of Corporations v. SpeeDee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1144.)

<u>Defendant's allegation that Plaintiff used AI and miscited legal authority.</u>

Defendants allege that Plaintiff used AI to generate false and misleading legal authority which she cited in her moving papers. (Opp. at 3-4.) The court is mindful that on April 10, 2026, it issued an Order to Show Cause to Plaintiff for citing non-existent case authority and for citing to actual case authority in a misleading manner in a previous motion. The hearing on that Order to Show Cause has yet to occur. It is set for May 8, 2026, at 9:00 a.m. After examining the citations at issue here, the court concludes that the first of Defendant's allegations amounts to a mere error in pagination. Plaintiff's citation of *Kirk v. First American Title* (2010) 183 Cal. App. 4^{th} 776, 801, for the proposition that, "The moving party bears the burden of showing a conflict, but once established, disqualification is presumptively warranted absent waiver," is more problematic. The opinion does not stand for the stated proposition.

In the *Kirk* case, the court addressed the issue of whether an entire law firm (as opposed to an entire government law office) is automatically disqualified from representation of a client if a single lawyer in the firm possessed material client confidences from a prior representation of a party adverse to that client. Justice Crosky summarized the court's central holding as follows.

> In this case, we are not concerned with the issue of disqualifying the attorney possessing the material client confidences from representing an adverse party; it is conceded that the attorney is disqualified from doing so. Instead, we are concerned with the issue of the vicarious disqualification of the attorney's entire law firm. We conclude that, under the circumstances of this case, *automatic* vicarious disqualification is not required, and that, instead, there is a *rebuttable* presumption that the attorney's knowledge of client confidences is imputed to the firm, which can be refuted by evidence that the law firm adequately screened the attorney from the others at the firm representing the adverse party.

Kirk, *supra,* 183 Cal. App. 4th at 784.

Plaintiff wrongly asserted that the *Kirk* case at page 801 stands for the proposition that if a conflict is established, disqualification is "presumptively warranted absent waiver." It does not. Instead, the court explained that a presumption of vicarious disqualification is a rebuttable one. At page 801, the *Kirk* court stated, "We do not doubt that vicarious disqualification is the *general* rule, and that we should presume knowledge is imputed to all members of a tainted attorney's law firm. However, we conclude that, in the proper circumstances, the presumption is a rebuttable one, which can be refuted by evidence that ethical screening will effectively prevent the sharing of confidences in a particular case." *Kirk*, *supra,* 183 Cal. App. 4th at 801, (emphasis in original). Thus, Defendant is correct that Plaintiff miscited legal authority to the court.

Other than ignoring the misleading citation asserted by Plaintiff, the court will not take additional action to sanction Plaintiff for this apparent misuse of legal authority. Given that the Court, on April 10, 2026 already issued an Order to Show Cause against Plaintiff for misrepresenting legal authority to the Court in other pleadings and set that hearing for May 8, 2026, and in view of the fact that Plaintiff filed the instant papers containing the misleading citation, on January 28, 2026, about two and half months before the Court's current Order to Show Cause, the Court will not take additional action concerning the Plaintiff's misleading citation of the *Kirk* case.

<u>Analysis</u>

Tod M. Ratfield

Initially, the Court notes that Plaintiff is seeking to disqualify the law firm of Tod M. Ratfield, A Professional Corporation Attorney at Law and attorney Tod M. Ratfield from this matter. The Ratfield firm and Mr. Ratfield, however, are not counsel of record in this matter. They have made no appearances and do not appear on any papers filed with the Court.

Plaintiff does not provide any legal authority to support the proposition that the Court has the authority to disqualify counsel not currently before it from participating in a matter. If attorney Ratfield were to associate into the matter, Plaintiff could make a motion at that time directed toward any potential conflict she believes exists.

Mr. Gregory's Alleged Conflict

Plaintiff relies upon California Rules of Professional Conduct 1.7 and 1.9 as the basis for her motion to disqualify.

Rule 1.7 pertains to concurrent representation of current clients and states, in pertinent part:

> (a) A lawyer shall not, without informed written consent from each client and compliance with paragraph (d), represent a client if the representation is directly adverse to another client in the same or a separate matter.
>
> (b) A lawyer shall not, without informed written consent from each affected client and compliance with paragraph (d), represent a client if there is a significant risk the lawyer's representation of the client will be materially limited by the lawyer's responsibilities to or relationships with another client, a former client or a third person, or by the lawyer's own interests.

California Rules of Professional Conduct 1.9 pertains to the duties of attorneys to former clients. It states, in pertinent part:

> A lawyer who has formerly represented a client in a matter shall not thereafter represent another person in the same or a substantially related matter in which that person's[ ] interests are materially adverse to the interests of the former client unless the former client gives informed written consent.

"Before an attorney may be disqualified from representing a party in litigation because his representation of that party is adverse to the interest of a current or former client, it must first be established that the party seeking the attorney's disqualification was or is 'represented' by the attorney in a manner giving rise to an attorney-client relationship." (*Koo v. Rubio's Restaurants, Inc.* (2003) 109 Cal.App.4th 719, 729 quoting *Civil Service Com. v. Superior Court* (1984) 163 Cal.App.3d 10, 76-77.)

"'A 'standing' requirement is implicit in disqualification motions. Generally, before the disqualification of an attorney is proper, the complaining party must have or must have had an attorney-client relationship with that attorney.'" (*Coldren v. Hart, King & Coldren, Inc.* (2015) 239 Cal.App.4th 237, 245 quoting *Great Lakes Construction, Inc. v. Burman* (2010) 186 Cal.App.4th 1347, 1356.)

"The burden is on the party seeking disqualification to establish the attorney-client relationship." (*Ibid.*)

Plaintiff presents no evidence and does not even argue that she was ever previously represented by attorney Gregory. Instead, she appears to argue that in April 2025 she communicated with Tod Ratfield regarding possibly hiring him to help her collect on a couple of judgments that were obtained by LLCs that she owned. (Mtn. at 5:6-13; Taylor Decl. ¶ 4-6.) She claims to have shared the 'confidential judgments' with Mr. Ratfield during those communications. (Taylor Decl. ¶ 4-6.) Plaintiff does not assert that she hired or retained Mr. Ratfield.

To link these communications to attorney Gregory, Plaintiff argues that attorney Gregory works for Mr. Ratfield and that any 'confidential' information sent to Mr. Ratfield should be imputed to Mr. Gregory.

Mr. Gregory confirms that prior to this matter he had never represented, met, or spoken to Plaintiff. (Gregory Decl. ¶ 5.) As for the alleged business relationship between Mr. Ratfield and Mr. Gregory, Mr. Gregory confirms that he occasionally works with Mr. Ratfield on an as-needed basis, as he does with a few other solo practitioners. (*Id.* ¶ 8.) Regarding Mr. Ratfield's communications with Plaintiff, Mr. Gregory confirms he had no knowledge of them, nor the contents of any documents sent by Plaintiff. (¶ 9.)

Mr. Ratfield confirms that he never discussed any of Plaintiff's communications with Mr. Gregory. (Ratfield Decl. ¶ 19-20.) In addition, while he does occasionally work with Mr. Gregory on cases on an 'as-needed' basis, Mr. Gregory is not employed by him. (¶ 21-22.) When Defendant Steve Smith contacted Mr. Ratfield, he informed Mr. Smith that he was too busy at that time to handle his matter. (¶ 18.) Instead, he referred Mr. Smith to Mr. Gregory. (*Ibid.*)

Additionally, Mr. Ratfield disputes the claim that he had an attorney-client relationship with Plaintiff. Initially, it is undisputed that Plaintiff never hired Mr. Ratfield. Mr. Ratfield also explains that none of the information sent by Plaintiff was confidential. Instead, it consisted of publicly available judgments entered in favor of RCLC, LLC. (¶ 4-11.) There were never any discussions of legal representation of Plaintiff. (*Ibid.*) Plaintiff was not named in either of those matters and as such even if there was a potential engagement it would be with the LLC and not with Plaintiff. There are no discussions of, or information related to, the Defendants in this action exchanged during those communications. (¶14.)

All the above fails to show that Plaintiff ever had any prior business or attorney-client relationship with Mr. Gregory. Nor did she establish that she had an attorney-client relationship with Mr. Ratfield. Even if there were such an association, Plaintiff has failed to show any reasonable connection between Mr. Ratfield and Mr. Gregory that could conceivably impute Mr. Ratfield's knowledge to Mr. Gregory.

In summary, Plaintiff has failed to meet her burden to establish the requisite attorney-client relationship necessary to seek disqualification of Mr. Gregory.

<u>Additional Issues</u>

In their Opposition, Defendants argue that Plaintiff improperly obtained and used confidential attorney-client documents that belong to defense counsel. (Opp. at III (f).) They request that the Court "order the immediate removal of all privileged materials from public access, prohibit Taylor from further use of such materials, require her to return every copy in her possession, preclude her from using those materials, or any information gained from them, in this action, or any action, for any purpose, and impose monetary sanctions of $5,000, or such other amount as the Court deems appropriate, to deter further misconduct." (Opp. at 10:10-15.)

Any request for affirmative relief made in an opposition is improper and will not be considered by the Court. "An application for an order is a motion." (Code Civ. Proc. § 1003.) Motions must follow the filing and service requirements set forth in the Code. (See e.g. Code Civ. Proc. § 1005, 1010.) To the extent Defendants seek affirmative relief for any of Plaintiff's actions, they are required to file a motion seeking such relief.

Conclusion

Plaintiff's motion to disqualify is **denied**.

11. 9:00 AM CASE NUMBER: MSC19-01240
CASE NAME: SONNENSHEIN VS PACIFIC UNION
***HEARING ON MOTION IN RE: FOR PARTIAL JUDGMENT ON THE PLEADINGS AS TO DEFENDANTS' ANSWER**
FILED BY: SONNENSHEIN, STACEY
****TENTATIVE RULING:****

Before the Court is a motion by Plaintiffs for partial judgment on the pleadings. For the reasons set forth, the motion is **denied**.

Background

In July 2015, plaintiffs Stacey Sonnenshein and Adam Bailey purchased a residential real property located at 6040 Feliz Avenue in Richmond. In their operative second amended complaint ("2AC"), Plaintiffs have sued defendants Pacific Union International, Inc. and Dan Joy, the real estate brokerage and sales agent, respectively, who represented both the Plaintiffs as buyers and the sellers in the transaction. They allege the defendants misrepresented that the "in-law" unit on the property was a "legal" unit. The 2AC alleges three causes of action for actual/constructive fraud (1st C/A), negligence (2nd C/A), and breach of fiduciary duty (3rd C/A).

Plaintiffs move for partial judgment on the pleadings as to Defendants' tenth affirmative defense in their amended answer filed on October 27, 2025. Plaintiffs seek a partial judgment on the pleadings to the effect that the tenth affirmative defense does not constitute a defense to the Plaintiffs' second cause of action for negligence. (Not. Mot. p. 2, ll. 3-12.)

Legal Standards Applicable to Motion for Judgment on the Pleadings

Code of Civil Procedure section 438 addresses motions for judgment on the pleadings. "A plaintiff is entitled to judgment on the pleadings if its complaint states a cause of action against the defendant and the defendant's answer does